



# **Theme 4: The Constitution of 1996: Basic Principles, Concepts and Doctrines**





**Admin!**

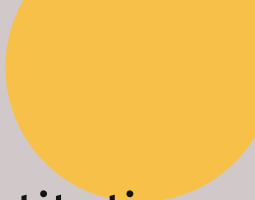
**Tutorials...16<sup>th</sup> April**

**A1... 16<sup>th</sup> April**

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## Recap: Theme 3



- We looked at the transition period that led to our 1996 Constitution
- We looked at the IC, and its characteristics
- We looked at the Constitutional Negotiations
- We looked at the two-stage transition
- We looked at the Constitutional Assembly
- We looked at the Certification Judgment
- We looked at the introduction of the 1996 Constitution



# The way forward: Theme 4 RoadMap

- Be able to provide a comprehensive explanation of the term '**constitutionalism**'
- Be able to explain **constitutional supremacy** and its impact on South African law
- Be able to explain **Transformative Constitutionalism**
- Know the **foundational values** of the Constitution and how it permeates through the Constitution, specifically in the interpretation and limitation of rights contained in the bill of rights
- Understand the concept of **the horizontal application** of the Bill of Rights
- Be able to explain **the rule of law** principle and how it has found application in South African law
- Be able to explain the different **conceptions of democracy**
- Know and be able to explain the principles upon which the **separation of powers** is based

# The Constitution, 1996.

- **Formally enacted as:** Constitution of the Republic of South Africa Act 108 of 1996
- Is now referred to as: **Constitution of the Republic of South Africa, 1996**
- Drafted by the **Constitutional Assembly**
- Finally certified by the Constitutional Court (Second Certification Judgment)
- Took effect: 4 February 1997 (replacing 1993 Interim Constitution)

# Important aspects of the 1996 Constitution

- Basic Rights for everyone are contained in a **justiciable Bill of Rights**
- Universal adult suffrage
- Constitutional Supremacy and the Rule of Law
- Non-racialism and non-sexism
- Co-operative government (national, provincial and local)
- Separation of powers (Legislative, executive and judicial authority)
- State institutions supporting constitutional democracy (Chp 9 institutions like the auditor General or the Public Protector)
- Traditional leaders
- Languages

# Understanding the 1996 Constitution

- To understand the 1996 Constitution, you need to
  - 1) Understand **the context** in which it originates and operates
  - 2) Understand the **fundamental doctrines, concepts and principles** the constitution contains

# Constitutionalism (de Vos 2.2)

- The theory of constitutional law
- Philosophy and doctrine that the governmental authority is derived from, and limited by a body of (written) fundamental law (ie a constitution)
- Ensures that rulers act according to binding boundaries and not their own desires



# Constitutionalism (de Vos 2.2)

- In essence, constitutionalism is the notion that a constitution must both **STRUCTURE** and **CONSTRAIN** state power
  - A constitution must establish the institutions and structures of government and allocate power to them for effective governing AND
  - It must limit and **disperse that power** among the institutions and structures in an attempt to ensure power will not be abused

# Constitutionalism (de Vos 2.2)

## Characteristics of Constitutionalism

1. **Identifies and establishes** institutions and structures of government
2. Formal and legal **distribution of power** to these institutions and structures in terms of a written constitution
3. Describes nature and basis of **relationship between** the institutions and structures

# Constitutionalism (de Vos 2.2)

## Characteristics of Constitutionalism

- 4. Provides the creation of binding rules/ laws for institutions and those who they govern
- 5. **Places limits** on exercise of public (state power)
- 6. Structure state and award and constrain power

# Constitutionalism (de Vos 2.2)

## Descriptive understanding of Constitutionalism

- Factual description of structures and institutions
- Focus on EXPLAINING how these institutions work, interact with each other, share and distribute power etc
- Without reference to norms or normative values on which constitutional **system is evaluated by**
- **Focused on form rather than substance**
- Colonial / Apartheid South Africa Constitutionalism

# Constitutionalism (de Vos 2.2)

## Prescriptive understanding of Constitutionalism

- With reference to norms / normative values on which the constitutional system is based
- Constitutional system should adhere to some basic doctrines, principles etc
- This is the approach the new Democratic South Africa takes

# Constitutionalism (de Vos 2.2)

## Key Aspects of Prescriptive Constitutionalism

- Constitutional Supremacy
- Limited Government
- Rule of Law
- Separation of Powers
- Democratic self government
- Protection of Human Rights
- Independent Judiciary
- Transformative Constitutionalism

***Constitutionalism is considered essential for a functional democratic state***

# Constitutional Supremacy

Most definitive feature of SA post-apartheid constitutional system is **Constitutional Supremacy**

- The foundation of our democratic constitutional dispensation
- Is a Founding Value and a binding enforceable rule
  - S1(c) (Value) ; S2 (binding rule)

# Constitutional Supremacy

- Constitutional supremacy renders the constitution judicable
  - Any law or conduct **can be tested against** the provisions of the constitution and must be declared **unconstitutional and invalid** if they fail to comply with these provisions
  - Given justiciability of Constitution – an important aspect of constitutional supremacy **is judicial review**
  - Judicial review enjoins court to declare any law/ conduct inconstant with the Constitution invalid.





# **Transformative Constitutionalism**

# Transformative Constitutionalism:

- The 1996 Constitution is seen as **inherently transformative**
  - Because: the central aim of the Constitution is to move from an unjust past to a just future
  - The founding **values in S1** confirm the intention to break from the past

# Transformative Constitutionalism:

## S1 Values:

- Human dignity and equality,
- Non-racism and non-sexism,
- Supremacy of the Constitution,
- and Universal adult suffrage

***Transformation as a principle is, therefore, foundational to constitutional interpretation***

# Defining Transformative Constitutionalism:

- No single fixed definition of Transformative Constitutionalism
- Most famous is from Prof Kare Klare:

## Transformative constitutionalism:

- “Long-term project of constitutional **enactment, interpretation and enforcement** committed (not in isolation, but in the historical context of conducive political developments) **to transforming** [South Africa’s] **political and social institutions** and power relationship in a democratic, participatory, and egalitarian direction” (Kleyn et al page 52).

# Defining Transformative Constitutionalism:

- 1) **Long term** – it will not happen overnight – is 30+ years enough to address +250 years of colonial and apartheid history?
- 2) **Interpretation and enforcement**, not isolation but in context
- 3) **Substantive equality**: goes beyond formal legal rights to ensure economic and social rights are realized, reducing structural inequality
- 4) **Proactive role of the law**: Unlike liberal traditions that see constitutions as static shields, this approach views them as swords for social change and proactive instruments for justice.

# Defining Transformative Constitutionalism:

**5) Rights Protections and Promotion:** It encourages a social and legal culture dedicated to upholding human dignity and democracy in daily interactions.

**6) Non-violent "revolution":** It is often described as an "enterprise of inducing large-scale social change through nonviolent political processes grounded in law

# Defining Transformative Constitutionalism:

- **KK states TC is:**
  - Social
  - redistributive,
  - Caring,
  - **Positive,**
  - at least partly horizontal,
  - **participatory,**
  - egalitarian,
  - multicultural and
  - **self-conscious about its historical setting** and transformative role and mission.
  - **( see De Vos section 1.4)**

# The Concept of Transformative Constitutionalism:

## Constitutional Supremacy:

- Fundamental aspect of Transformative constitutionalism
- The Constitution is the highest law
  - It should facilitate and enable fundamental political, economic, social and cultural change
  - **“Historical self consciousness”** – redress and undoing of the legacy of colonialism and Apartheid ( post-amble IC)
  - **Building a future** – based on fundamental human rights, democracy, and social justice (Preamble 1996 Constitution)



# The Concept of Transformative Constitutionalism:

- Value-based concept of democracy :
  - S7(1) 1996 Constitution
  - “This Bill of Rights **is a cornerstone of democracy** in South Africa. It enshrines the rights of all people in our country and **affirms the democratic values of human dignity, equality and freedom.**”
  - Designed for social and structural change

# Transformative Constitutionalism:

CJ P Langa:

- Paper was presented Annual Human Rights Lecture (Stellenbosch) 2006
- See the Constitution is a “bridge” (think back to post-amble discussion) between the unjust, divided past and a future based on rights, equality, and dignity
- He States the objective of the constitution is to **establish a truly equal society**
- This includes provision of basic socio-economic rights to all

*Transformation, therefore, looks at making a commitment to change*

# Transformative Constitutionalism

- ***Soobramoney v Minister of Health 1997 (CC) para 8:*** "We live in a society in which there are great disparities in wealth. Millions of people are living in deplorable conditions and in great poverty. There is a high level of unemployment, inadequate social security, and many do not have access to clean water or to adequate health services. *These conditions already existed when the Constitution was adopted* and a commitment to address them, and *to transform our society* into one in which there will be human dignity, freedom and equality, lies at the heart of our new constitutional order."
- **Highlights that it is both backwards and forward looking**

# Transformative Constitutionalism:

CJ P Langa:

**Culture of Justification:** “The Constitution demands that all decisions be capable of being substantively defended in terms of **rights and values that it enshrines**. It is no longer sufficient for judges to rely on the say-so of parliament or technical readings of legislation as providing justifications for their decisions. **Under a transformative constitution, judges bear the ultimate responsibility to justify their decisions not only by reference to authority, but by reference to ideas and values.**”

# Transformative Constitutionalism:

## CJ P Langa - Legal education and TC

- Cannot just blindly accept legal principles because of the authority
- Values of the Constitution must be instilled
- Must critically engage with constitutional values
- “A truly transformative South Africa requires a new approach that places constitutional dream at the very heart of legal education”
- Change in mindset – not just change of laws

# Transformative Constitutionalism:

## LLB standard:

- requires that “transformative constitutionalism” and its core philosophy are suitably understood by law faculties, appropriately embedded in curricula at all levels of the LLB programme and internalised by students
- When you study